

be paid to the husband it passes into the hands of a stranger, and if it be paid to the wife, the law immediately transfers it to the husband who is a stranger. If any receipt be taken it should be the joint receipt of the husband and wife (*d*). But the safest course would be to pay the money to the account of the wife at some responsible bank, made payable upon the joint receipt of the husband and wife, and to remain there until required for the purposes of the trust, and if the husband and wife took it out of the bank for any purpose he would be liable as for a breach of trust.¹

[*35] * When the husband is a lunatic or idiot, or living apart from the wife, or otherwise incapable (as from infancy (*a*), or from being abroad and not heard of for years (*b*)), of joining in the execution of a deed, the [High Court of Justice (*c*)] has power to dispense with the husband's concurrence, [in which case the deed need not be acknowledged by the *feme covert* (*d*)]. The Court has frequently exercised this jurisdiction by enabling a *feme covert* entitled to freeholds or copyholds (*e*), in fee simple (*f*), in fee tail (*g*), or for life, either in possession or reversion (*h*), or to dower (*i*), or to leaseholds (*j*), [or to personal estate falling under 20 & 21 Vict. c. 57] (*k*), "by deed or surrender, to dispose of release, or surrender all *her* estate and interest" (the words

(*d*) See *Drummond v. Tracy*, 1 Johns. 611.

(*a*) *Re Haigh*, 2 C. B. N. S. 198.

(*b*) *Re Harriet Hedges*, W. N. 1867, p. 19; *Re Tarboton*, W. N. 1867, p. 276; *Ex parte Robinson*, 4 L. R. C. P. 205.

[(*c*) This jurisdiction, originally given to the Court of Common Pleas by the Fines and Recoveries Act, s. 91, has been transferred to the High Court of Justice by the "Supreme Court of Judicature Act, 1873." See *Ex parte Thompson*, W. N. 1884, p. 28.]

[(*d*) *Goodechild v. Dougal*, 3 Ch. D. 650.]

(*e*) *Ex parte Shuttleworth*, 4 Moore and Scott, 332, note.

(*f*) *Re Kelsey*, 16 C. B. 197; *Re Cloud*, 15 C. B. N. S. 833; *Re Woodall*, 3 C. B. 639; *Re Woodcock*, 1 C. B. 437.

(*g*) *Ex parte Thomas*, 4 Moore and Scott, 331.

(*h*) *Ex parte Gill*, 1 Bing. N. C. 108.

(*i*) *Re Turner*, 3 C. B. 639.

(*j*) *Re Harriet Hedges*, W. N. 1867, p. 19.

[(*k*) *Re Alice Rogers*, 1 L. R. C. P. 47; *Ex parte Alice Cockerell*, 4 C. P. D. 39.]

¹ *Still v. Ruby*, 35 Pa. St. 373; *Drummond v. Tracy*, 1 Johns. 611; *Griffith v. Griffith*, 5 B. Mon. 113; *Shirley v. Shirley*, 9 Paige, 363; *Picquet v. Swan*, 4 Mason, 455; see statutes in reference to married women in the various states.